

The Empower School
Safeguarding and Child Protection Policy



Safeguarding and Child Protection Policy

For

The Empower School Ltd

This Policy is available on our website.

This Policy is available on our website and is available on request. We also inform parents and carers about this policy when their children join our school.

This policy will be reviewed in full by The Empower School Ltd on an annual basis. This policy was last reviewed and agreed by the Directors of The Empower School Ltd on 20th January 2025. It is due for review on 20th January 2026.

Signature

Director

Date:

Signature

Director

Date:

Policy Consultation & Review

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We recognise the expertise our staff build by undertaking safeguarding training and managing safeguarding concerns on a daily basis and we therefore invite staff to contribute to and shape this policy and associated safeguarding arrangements.

The policy is provided to all staff at induction alongside our Staff Code of Conduct, behaviour policy and the safeguarding response to those pupils who are missing from education. In addition, all staff are provided with Part One of the statutory guidance '*Keeping Children Safe in Education*', DfE (2022).

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1. PURPOSE & AIMS

1.1 The purpose of The Empower School safeguarding policy is to ensure every child who is a registered pupil at our school is safe and protected from harm. This means we will always work to:

- Protect children and young people at our school from maltreatment;
- Prevent impairment of our children's and young people's mental and physical health or development;
- Ensure that children and young people at our school grow up in circumstances consistent with the school of safe and effective care;
- Undertake that role so as to enable children and young people at our school to have the best outcomes.

1.2 This policy will give clear direction to all staff including supply staff, volunteers, visitors and parents about expected behaviour and our legal responsibility to safeguard and promote the welfare of all children at our school.

1.3 Our school fully recognises the contribution it can make to protect children from harm and supporting and promoting the welfare of all children who are registered pupils at our school. The elements of our policy are prevention, protection and support.

1.4 We recognise that our safeguarding responsibilities are clearly linked to our responsibilities for ensuring that appropriate safeguarding responses are

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in place for children who are absent from school or who go missing from education, particularly on repeat occasions. The Key Contact at The Empower School will regularly liaise with the school Designated Safeguarding Lead to discuss all persistently absent pupils and those who go missing to identify the risk of abuse and neglect including sexual abuse or exploitation and to ensure that appropriate safeguarding responses have been put in place to reduce the risk of future harm.

1.5 This policy applies to all pupils, staff, parents, volunteers and visitors.

2. OUR ETHOS

2.1 The child's welfare is of paramount importance. Our school will establish and maintain an ethos where pupils feel secure, are encouraged to talk, are listened to and are safe. Children at our school will be able to talk freely to any member of staff at our school if they are worried or concerned about something. All staff will reassure victims that they are being taken seriously and that they will be supported and kept safe. Victims will never be given the impression that they are creating a problem by reporting abuse, sexual violence or sexual harassment.

2.2 Everyone who comes into contact with children and their families has a role to play in safeguarding children. We recognise that staff at our school play a particularly important role as they are in a position to identify concerns early and provide help for children to prevent concerns from escalating. **All staff are advised to maintain an attitude of 'it could happen here' where safeguarding is concerned.** When concerned about the welfare of a child, staff members must always act in the **best interests** of the child.

2.3 At The Empower School we ensure that safeguarding and child protection is at the forefront and underpin all relevant aspects of process and policy development. We operate with the best interests of the child at their heart.

2.4 Where there is a safeguarding concern, the child's wishes and feelings are taken into account when determining what action to take and what

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services to provide. The systems we have in place are well promoted, easily understood and easily accessible for children to confidently report abuse, knowing their concerns will be treated seriously, and knowing they can safely express their views and give feedback.

2.5 All staff and regular visitors will, through training and induction, know how to recognise indicators of concern, how to respond to a disclosure from a child and how to record and report this information. We will not make promises to any child and we will not keep secrets. Every child will know what the adult will have to do with any information they have chosen to disclose. All staff will be trained to recognise that children may not feel ready or know how to tell someone that they are being abused, exploited, or neglected, and/or they may not recognise their experiences as harmful.

2.6 At all times we will work in partnership and endeavour to establish effective working relationships with parents, carers and colleagues from other agencies in line with Working Together to Safeguard Children (2018)

2.7 As part of our responsibilities for safeguarding and promoting the welfare of children, we will provide a co-ordinated approach with the linked school an offer of early help when additional needs of children are identified. These may include if a child:

- is disabled and has specific additional needs;
- has special educational needs (whether or not they have a statutory education, health and care plan);
- has a mental health need;
- is a young carer;
- is showing signs of being drawn in to anti-social or criminal behaviour, including gang involvement and association with organised crime groups;
- is frequently missing/goes missing from care or from home;
- is misusing drugs or alcohol themselves;
- is at risk of modern slavery, trafficking or exploitation;

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- is in a family circumstance presenting challenges for the child, such as substance abuse, adult mental health problems or domestic abuse;
- has returned home to their family from care;
- is showing early signs of abuse and/or neglect;
- is at risk of being radicalised or exploited;
- is at risk of 'honour'-based abuse such as Female Genital Mutilation or Forced Marriage;
- is a privately fostered child
- has a family member in prison, or is affected by parental offending;
- is persistently absent from education, including persistent absences for part of the school day.

2.8 At The Empower School we understand the importance of working in a way that adheres to the following legislation:

- The Human Rights Act 1998
- Equality Act 2010
- Public Sector Equality Duty

This means we do not unlawfully discriminate against pupils because of their sex, race, disability, religion or belief, gender reassignment, pregnancy and maternity, or sexual orientation (protected characteristics).

3. ROLES AND RESPONSIBILITIES

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Role	Name	Contact details
Designated Safeguarding Lead (DSL)	Ginnette Williams	gw@contactsuccess.co.uk

3.1 It is the responsibility of every member of staff, volunteer and regular visitor to our school to ensure that they carry out the requirements of this policy and, at all times, work in a way that will safeguard and promote the welfare of all of the pupils at this school. This includes the responsibility to provide a safe environment in which children can learn.

3.2 The Empower School is accountable for ensuring the effectiveness of this policy and our compliance with it.

3.3 The Empower School will ensure that:

- The safeguarding policy is in place and is reviewed annually, is available publicly via our school website and has been written in line with Local Authority guidance and the requirements of the Devon County Safeguarding Children Partnership policies and procedures;
- The school contributes to inter-agency working in line with Working Together to Safeguard Children (2018);
- A senior member of staff from leadership team is designated to take the lead responsibility for safeguarding and child protection and that there is at least one deputy DSL(s) who is appropriately trained member to deal with any issues in the absence of the Designated Safeguarding Lead (DSL). There will always be cover for this role. The role will be evidenced explicitly in the role holder's job description.
- All staff receive a safeguarding induction and are provided with a copy of this policy, the staff code of conduct, the behaviour policy and the school's

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safeguarding response for those pupils who go missing from education as detailed section 6 of this policy.

- All staff undertake appropriate child protection training that is updated annually and on-line safety training;
- Procedures are in place for dealing with allegations against members of staff and volunteers in line with statutory guidance;
- Safer recruitment practices are followed in accordance with the requirements of [*'Keeping Children Safe in Education'*](#) DfE (2022);
- They remedy without delay any weakness in regard to our safeguarding arrangements that are brought to their attention.

3.4 The Empower School will retain a safeguarding report that will record the training that has taken place, the number of staff attending and any outstanding training requirements for the school. It will also record all safeguarding activity that has taken place, for example, meetings attended, reports written, training or induction given. It will not identify individual pupils.

The Directors

3.5 At The Empower School the Director is responsible for:

- Identifying a senior member of staff to be the Designated Safeguarding Lead (DSL);
- Identifying alternate members of staff to act as the Designated Safeguarding Lead (DSL) in his/her absence to ensure there is always cover for the role;
- Ensuring that the policies and procedures adopted concerning referrals of cases of suspected abuse and neglect, are followed by all staff;

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- Ensuring that all staff and volunteers feel able to raise concerns about poor or unsafe practice and such concerns are addressed sensitively in accordance with agreed whistle-blowing procedures;
- Liaise with the LADO in the event of an allegation of abuse being made against a member of staff or volunteer.

The Designated Safeguarding Lead (DSL)

3.6 The Designated Safeguarding Lead is a senior member of staff, who takes lead responsibility for safeguarding and child protection within our school. The DSL will carry out their role in accordance with the responsibilities outlined in Annex C of ['Keeping Children Safe in Education'](#).

3.7 The DSL will provide advice and support to other staff on child welfare and child protection matters. Any concern for a child's safety or welfare will be recorded in writing and given to the DSL.

3.8 During term time the designated safeguarding lead and or a deputy will always be available (during school hours) for staff in the school or college to discuss any safeguarding concerns. If in *exceptional* circumstances, a DSL is not available on the school site in person, we will ensure that they are available via telephone and/or any other relevant media.

3.9 The DSL at The Empower School will represent our school at child protection conferences and core group meetings. Through appropriate training, knowledge and experience our DSL will liaise with Children's Services and other agencies where necessary, and make referrals of suspected abuse to Children's Services, take part in strategy discussions and other interagency meetings and contribute to the assessment of children.

3.10 The DSL liaise with the linked schools DSL/DDSL to maintain records and child protection files ensuring that they are kept confidential and stored securely (see section 7 for more information.)

3.11 The DSL is responsible for ensuring that all staff members and volunteers are aware of our policy and the procedure they need to follow.

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3.12 The DSL will obtain details of the Local Authority Personal Advisor appointed to guide and support a child who is a care leaver via referral process from referring linked school.

3.13 The DSL/DDSL (s) will work with the headteacher and senior leaders of the referring linked school, taking lead responsibility for promoting educational outcomes by knowing the welfare, safeguarding and child protection issues that children in need are experiencing, or have experienced, and identifying the impact that these issues might be having on children's attendance, engagement and achievement.

3.14 We recognise that a child's experiences of adversity and trauma can leave them vulnerable to further harm, as well as educationally disadvantaged in facing barriers to attendance, learning, behaviour and mental health. The DSL will use the information that they hold about children with a social worker to make decisions in the best interests of the child's safety, welfare and help promote educational outcomes. The DSL will ensure that staff, know who these children are, understand their academic progress and attainment and maintain a culture of high aspirations for this cohort; supporting teaching staff to identify the challenges that children in this group might face and the additional academic support and adjustments that they could make to best support these children via the referral process of the referring linked school.

4. TRAINING & INDUCTION

4.1 When new staff join our school they will be informed of the safeguarding arrangements in place. They will be given a copy of our school's safeguarding policy along with the staff code of conduct, Part one and/or Annex B of *'Keeping Children Safe in Education'* and told who our Designated Safeguarding Lead (DSL) and Deputy DSLs are. They will also receive a copy of the behaviour policy and the school's response to children who go missing from education – this information is included in section 6 of this policy. All staff are expected to read these key documents. They will also be provided with information about how to record and report safeguarding concerns.

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4.2 Every new member of staff or volunteer will receive safeguarding training during their induction period within 2 weeks of joining the school. This programme will include information relating to signs and symptoms of abuse, how to manage a disclosure from a child (including reassuring victims that they are being taken seriously and that they will be supported and kept safe), how to record, the processes for referral to Children's Services and the statutory assessments under Section 17 and Section 47 as well as the remit of the role of the Designated Safeguarding Lead (DSL). The training will also include information about whistleblowing in respect of concerns about another adult's behaviour and suitability to work with children. Staff will also receive on-line safety training as this is part of the overarching safeguarding approach of our school.

4.3 In addition to the safeguarding induction, we will ensure that mechanisms are in place to assist staff to understand and discharge their role and responsibilities as set out in Part one of *'Keeping Children Safe in Education'*. In order to achieve this, we will ensure that:

- all members of staff will undertake appropriate safeguarding training on an annual basis and we will evaluate the impact of this training;
- all staff members receive regular safeguarding and child protection updates (for example, via email, e-bulletins, staff meetings), as required, but at least annually, to provide them with relevant skills and knowledge to safeguard children effectively;
- all members of staff will receive any relevant safeguarding updates during team meetings on referring child in school to enable staff to provide any additional support.

4.4 All regular visitors, temporary staff and volunteers to our school will be given a set of our safeguarding procedures; they will be informed of whom our DSL and alternate staff members are and what the recording and reporting system is. (See Appendix 2).

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4.5 We actively encourage all of our staff to keep up to date with the most recent local and national safeguarding advice and guidance, Annex B of '*Keeping Children Safe in Education*' (2022) provides links to guidance on specific safeguarding issues such as Child Exploitation and Female Genital Mutilation. In addition, local guidance can be accessed via Devon County Safeguarding Children Partnership and within staff meetings.

5. PROCEDURES FOR MANAGING CONCERNS

5.1 The Empower School adheres to child protection procedures that have been agreed locally through the Devon County Safeguarding Children Partnership. Where we identify children and families in need of support, we will carry out our responsibilities and work in partnership with referring linked school and relevant agencies.

5.2 Every member of staff including volunteers working with children at our school are advised to maintain an attitude of '*it could happen here*' where safeguarding is concerned. When concerned about the welfare of a child, staff members should always act in the interests of the child and have a responsibility to take action as outline in this policy.

5.3 All staff are encouraged to report any concerns that they have and not see these as insignificant. On occasions, a referral is justified by a single incident such as an injury or disclosure of abuse. More often however, concerns accumulate over a period of time and are evidenced by building up a picture of harm over time; this is particularly true in cases of emotional abuse and neglect. In these circumstances, it is crucial that staff record and pass on concerns in accordance with this policy immediately to allow the DSL to build up a picture and access support for the child at the earliest opportunity. A reliance on memory without accurate and contemporaneous records of concern could lead to a failure to protect.

5.4 It is *not* the responsibility of school staff to investigate welfare concerns or determine the truth of any disclosure or allegation. All staff, however, have a

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duty to recognise concerns and pass the information on in accordance with the procedures outlined in this policy.

5.5 The Designated Safeguarding Lead (DSL) should be used as a first point of contact for concerns and queries regarding any safeguarding concern in our school. Any member of staff or visitor to the school who receives a disclosure of abuse or suspects that a child is at risk of harm must report it immediately to the DSL or, if unavailable, to the alternate designated person. In the absence of either of the above, the matter should be brought to the attention of the most senior member of staff. All safeguarding concerns will be submitted to the linked referring school DSL.

5.6 All concerns about a child or young person should be reported without delay and recorded in writing using the agreed system in the setting. This will be submitted to the linked referring school DSL using a confidential and secure electronic platform (egress)

Records should include:

- a clear and comprehensive summary of the concern
- details of how the concern was followed up and resolved
- a note of any action taken, decisions reached and the outcome

5.7 Following receipt of any information raising concern, the DSL will consider what action to take and liaise with the linked school DSL. All information and actions taken, including the reasons for any decisions made, will be fully documented.

5.8 If, at any point, there is a risk of immediate serious harm to a child a referral should be made to Devon County Council immediately and referring linked school notified. Anybody can make a referral in these circumstances. If the child's situation does not appear to be improving the staff member with concerns should press for re-consideration by raising concerns again with the DSL and/or the Headteacher. Concerns should always lead to help for the child at some point.

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5.9 Any member of staff who does not feel that concerns about a child have been responded to appropriately and in accordance with the procedures outlined in this policy should raise their concerns with the Director of The Empower School or referring linked school.

6. Specific Safeguarding Issues

Contextual safeguarding

6.1 At The Empower School we recognise that safeguarding incidents and/or behaviours can be associated with factors outside of the school environment and/or can occur between children outside of the school. This is known as contextual safeguarding. It is key that all school staff understand the definition of contextual safeguarding and consider whether children are at risk of abuse or exploitation in situations outside their families. Through training we will ensure that staff and volunteers are aware that extra-familial harms take a variety of different forms and children can be vulnerable to multiple harms including (but not limited to) sexual exploitation, criminal exploitation, and serious youth violence. When reporting concerns, staff should include as much information and background detail as possible so the DSL can make a referral with a holistic view of the child. This will allow any assessment to consider all the available evidence and the full context of any abuse.

6.2 We recognise that children with special educational needs and/or disabilities (SEND) can face additional safeguarding challenges and these are discussed in staff training. These additional barriers can include:

- assumptions that indicators of possible abuse such as behaviour, mood and injury relate to the child's disability without further exploration;
- children with SEN and disabilities can be disproportionately impacted by things like bullying- without outwardly showing any signs; and
- communication barriers and difficulties in overcoming these barriers.

6.3 At The Empower School we recognise that a previously looked after child potentially remains vulnerable and all staff should have the skills, knowledge

and understanding to keep previously looked after children safe. When dealing with looked after children and previously looked after children, it is important that all agencies work together, and prompt action is taken when necessary to safeguard these children, who are a particularly vulnerable group.

**Child Sexual Exploitation (CSE), Child Criminal Exploitation (CCE):
County Lines and serious violence**

6.4 At The Empower School we train staff to recognise that both CSE and CCE are forms of abuse and both occur where an individual or group takes advantage of an imbalance in power to coerce, manipulate or deceive a child into sexual or criminal activity. Whilst age may be the most obvious, this power imbalance can also be due to a range of other factors including gender, sexual identity, cognitive ability, physical strength, status, and access to economic or other resources. Victims can be exploited even when activity appears consensual and it should be noted exploitation as well as being physical can be facilitated and/or take place online.

6.5 At The Empower School we recognise that Child Sexual Exploitation is a form of child sexual abuse and this imbalance of power coerces, manipulates or deceives a child or young person into sexual activity (a) in exchange for something the victim needs or wants, and/or (b) for the financial advantage or increased status of the perpetrator. Child sexual exploitation does not always include physical contact, it can also occur through the use of technology. We understand that some children may not realise they are being exploited e.g. they may believe they are in a genuine romantic relationship.

6.6 At The Empower School we understand that criminal exploitation of children is a geographically widespread form of harm that is a typical feature of county lines criminal activity. Drug networks or gangs groom and exploit children and young people to carry drugs and money from urban areas to suburban and rural areas, market and seaside towns. Key to identifying

potential involvement in county lines are missing episodes, when the victim may have been trafficked for the purpose of transporting drugs.

6.7 We understand that children can become trapped by this type of exploitation as perpetrators can threaten victims (and their families) with violence or entrap and coerce them into debt. They may be coerced into carrying weapons such as knives or begin to carry a knife for a sense of protection from harm from others. We will treat these children as victims understanding that they have been criminally exploited even if the activity appears to be something they have agreed or consented to. We recognise the experience of girls who are criminally exploited can be very different to that of boys and that both boys and girls being criminally exploited may be at higher risk of sexual exploitation.

6.8 At The Empower School staff are aware of the indicators and risk factors which may signal a child is vulnerable to or involved with serious violent crime. We make reference to the Home Office's Preventing youth violence and gang involvement and Criminal exploitation of children and vulnerable adults: county lines guidance for more information. Safeguarding concerns around these risks will be reported via referral form to referring link school and relevant agencies.

So-called 'honour-based violence (including Female Genital Mutilation and Forced Marriage

6.9 At The Empower School we recognise that our staff are well placed to identify concerns and take action to prevent children from becoming victims of Female Genital Mutilation (FGM) and other forms of so-called 'honour-based' violence (HBV) and provide guidance on these issues through our safeguarding training. If staff have a concern regarding a child that might be at risk of HBV, they should inform the DSL who will activate local safeguarding procedures, using existing national and local protocols for multiagency liaison with police and children's social care.

6.10 At The Empower School we recognise that forcing a person into a marriage is a crime in England and Wales. A forced marriage is one entered into without the full and free consent of one or both parties where violence, threats or any other form of coercion is used to cause a person to enter into a marriage. Threats can be physical or emotional and psychological.

Preventing radicalisation and extremism

6.11 We recognise that safeguarding against radicalisation and extremism is no different to safeguarding against any other vulnerability in today's society. At The Empower School, we will ensure that:

- Through training, staff, volunteers have an understanding of what radicalisation and extremism is, why we need to be vigilant in school and how to respond when concerns arise and how to make the relevant referrals.
- The DSL has received Prevent training and will act as the point of contact within our school for any concerns relating to radicalisation and extremism.
- The DSL will liaise with the referring linked school and make referrals in accordance with Devon County Prevent Board.

Child on child sexual violence and sexual harassment

6.12 At The Empower School all staff are trained so that they are aware that safeguarding issues can manifest themselves via child on child abuse. This is most likely to include, but may not be limited to:

- bullying (including cyberbullying);
- physical abuse such as hitting, kicking, shaking, biting, hair pulling, or otherwise causing physical harm;
- sexual violence and sexual harassment;
- upskirting;

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- sexting (also known as youth produced sexual imagery); and
- initiation/hazing type violence and rituals.

6.13 We recognise that children are vulnerable to physical, sexual and emotional abuse by other children or siblings. Abuse perpetrated by children can be just as harmful as that perpetrated by an adult, so it is important that all staff and volunteers to remember the impact on both the victim of the abuse as well as to focus on the support for the child or young person exhibiting the harmful behaviour. We understand that abuse can occur in intimate personal relationships between children; and that consensual and non-consensual sharing of nudes and semi nudes images and or videos¹ (also known as sexting or youth produced sexual imagery) is a form of child on child abuse.

6.14 We understand, that even if there are no reports in our setting it does not mean it is not happening, it may be the case that it is just not being reported. We recognise that pupils may not find it easy to tell staff about their abuse and can show signs or act in ways that they hope adults will notice and react to. In some cases, the victim may not make a direct report, and this may come from a friend or a conversation that is overheard. Such abuse will always be taken as seriously as abuse perpetrated by an adult and the same safeguarding children procedures will apply in respect of any child who is suffering or likely to suffer significant harm. Staff must never tolerate or dismiss concerns relating to child on child abuse and they will always challenge this. It must never be tolerated or passed off as 'banter', 'just having a laugh' or 'part of growing up'. Doing this can lead to a culture of unacceptable behaviours, an unsafe environment for children and in worst case scenarios a culture that normalises abuse leading to children accepting it as normal and not coming forward to report it.

6.15 At The Empower School all staff will reassure victims that they are being taken seriously and that they will be supported and kept safe. Victims will

¹ UKCIS guidance: [Sharing nudes and semi-nudes advice for education settings](#)

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never be given the impression that they are creating a problem by reporting abuse, sexual violence or sexual harassment. Nor will a victim ever be made to feel ashamed for making a report. We will also offer appropriate support to the perpetrator and any other children involved.

6.16 All staff will understand that they should follow our safeguarding procedures for reporting a concern if they are worried about child on child abuse. The DSL will respond to any concerns related to child on child abuse in line with guidance outlined in Part five of '*Keeping Children Safe in Education*' and 'Sexual violence and sexual harassment between children in schools and colleges' (2021). We will ensure that all concerns, discussions and decisions reached are clearly recorded and any identified actions are followed up, liaising with the referring linked school DSL.

Modern Slavery

6.17 At The Empower School we understand that modern slavery encompasses human trafficking and slavery, servitude and forced or compulsory labour. Exploitation can take many forms, including sexual exploitation, forced labour, slavery, servitude, forced criminality and the removal of organs. We refer to the DfE guidance Modern slavery: how to identify and support victims for concerns of this nature. for concerns of this nature.

Safeguarding responses to children who go missing

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6.18 At The Empower School all staff should be aware of the safeguarding responsibilities for children who are missing education, particularly on repeat occasions, to help identify the risk of abuse and neglect, including sexual abuse or exploitation, and to help prevent the risks of their going missing in future.

6.19 At The Empower School we adhere to the following procedures and processes to ensure there is an appropriate safeguarding response to children who missing:

- An attendance register is taken at the start of the first session of each school day and submitted to the referring linked school within the agreed timescale.
- We make every effort to contact parents and carers and follow up with the emergency contacts held;
- We hold at least two emergency contact numbers for each of the pupils on our roll wherever possible.
- Staff will alert referring linked school to any concerns raised regarding children who are absent from school as agreed during the referral process;
- The Key Contact member of The Empower School will meet regularly with the Attendance Lead, Pastoral Lead to ensure that each response is thorough and takes into account all the relevant information about individual children;
- We will follow the procedures outlined in our attendance policy to ensure we intervene early in cases of poor attendance and/or unexplained absences.

Mental Health

6.20 At The Empower School all staff are made aware, through training, that mental health problems can, in some cases, be an indicator that a child has suffered or is at risk of suffering abuse, neglect or exploitation. Our staff are well placed to observe children day-to-day and identify those whose

behaviour suggests that they may be experiencing a mental health problem or be at risk of developing one.

6.21 We understand that where children have suffered abuse and neglect, or other potentially traumatic adverse childhood experiences, this can have a lasting impact throughout childhood, adolescence and into adulthood. Therefore, through training, staff are aware of how children's experiences, can impact on their mental health, behaviour and education. All staff are aware that if they have a mental health concern about a child that is *also* a safeguarding concern, they should take immediate action by passing the information on to a Designated Safeguarding Lead.

Domestic Abuse

6.22 At The Empower School all staff are aware that domestic abuse can encompass a wide range of behaviours and may be a single incident or a pattern of incidents. That abuse can be, but is not limited to, psychological, physical, sexual, financial or emotional. We understand that children can be victims of domestic abuse, and this can have a detrimental and long-term impact on their health, well-being, development, and ability to learn.

Children with special educational needs and disabilities or physical health issues

6.23 At The Empower School we recognise that children with special educational needs or disabilities (SEND) or certain health conditions can face additional safeguarding challenges such as

- assumptions that indicators of possible abuse such as behaviour, mood and injury relate to the child's condition without further exploration;
- these children being more prone to peer group isolation or bullying (including prejudice-based bullying) than other children;

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- the potential for children with SEND or certain medical conditions being disproportionately impacted by behaviours such as bullying, without outwardly showing any signs; and
- communication barriers and difficulties in managing or reporting these challenges.

6.24 We work to address these additional challenges and consider extra pastoral support and attention for these children, along with ensuring any appropriate support for communication is in place.

6.25 At The Empower School we also recognise that pupils who attend Alternative School will often have complex needs and due to this we are aware of the additional risk of harm these children may be vulnerable to.

Children who are lesbian, gay, bi or trans (LGBT)

6.26 The fact that a child or a young person may be LGBT is not in itself an inherent risk factor for harm. However, in line with 'Keeping Children Safe in Education', we recognise that children who are LGBT or those perceived by other children to be LGBT could potentially be more vulnerable and therefore we work to reduce any additional barriers faced. We provide a safe space for these children to speak out or share their concerns with members of staff. Through our curriculum, we counter homophobic, biphobic and transphobic bullying and abuse.

<https://www.gov.uk/guidance/safeguarding-and-remote-education-during-coronavirus-covid-19>

7. RECORDS AND INFORMATION SHARING

7.1 If staff are concerned about the welfare or safety of any child at our school, they will record their concern either on the agreed reporting form (Appendix 1) or through the setting's electronic system. Any concerns should be passed to the DSL and referring linked school without delay

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7.2 Any information recorded will be kept in a separate named electronic stored file. These files will be the responsibility of the DSL. Child protection information will only be shared within the school on the basis of 'need to know in the child's interests' and on the understanding that it remains strictly confidential. These files will be removed from The Empower School system when the said child leaves our school. All documentation will become the responsibility of the referring linked school.

8. WORKING WITH PARENTS & CARERS

8.1 The Empower School is committed to working in partnership with parents/carers and referring linked school to safeguard and promote the welfare of children and to support them to understand our statutory responsibilities in this area.

8.2 When new pupils join our school, parents and carers will be informed that we have a safeguarding policy. A copy will be provided to parents on request and is available on the school website.

8.3 We are committed to working with parents positively, openly and honestly. We ensure that all parents are treated with respect, dignity and courtesy. We respect parents' rights to privacy and confidentiality and will not share sensitive information unless we have permission, or it is necessary to do so in order to safeguard a child from harm.

9. SAFER RECRUITMENT

10.1 We will ensure that one of the Directors of The Empower School have completed appropriate safer recruitment training. At all times we will ensure that safer recruitment practices are followed in accordance with the requirements of '*Keeping Children Safe in Education*', DfE (2022). At least one person involved in conducting an interview will have received safer recruitment training.

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10.2 At The Empower School we will use the recruitment and selection process to deter and prevent people who are unsuitable to work with children from applying for or securing employment, or volunteering opportunities.

10.3 We will undertake Disclosure and Barring Service checks and other pre-employment checks as outlined in '*Keeping Children Safe in Education*' to ensure we are recruiting and selecting the most suitable people to work with our children.

10.4 We will maintain a Single Central Record (SCR) of all safer recruitment checks carried out in line with statutory requirements. A senior member of staff will check the SCR regularly to ensure that it meets statutory requirements.

10.5 At The Empower School we recognise that safer recruitment is not just about carrying out the right DBS checks and is not limited to recruitment procedures. Therefore, we understand the importance of continuous vigilance, maintaining an environment that deters and prevents abuse and challenges inappropriate behaviour.

11. SAFER WORKING PRACTICE

11.1 All adults who come into contact with students at The Empower School have a duty of care to safeguard and promote their welfare. There is a legal duty placed upon us to ensure that all adults who work with or on behalf of our children are competent, confident and safe to do so.

11.2 All staff will be provided with a copy of our school code of conduct at induction. They will be expected to know our school Code of Conduct and policy for positive handling and carry out their duties in accordance with this advice. There will be occasion when some form of physical contact is inevitable, for example if a child has an accident or is hurt or is in a situation of danger to themselves or others around them. However, at all times the agreed policy for safe restraint must be adhered to. .

11.3 If staff, visitors, volunteers are working with children alone they will, wherever possible, be visible to other members of staff. They will be

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expected to inform another member of staff of their whereabouts in school, who they are with and for how long. Doors, ideally, should have a clear glass panel in them and be left open.

11.4 Guidance about acceptable conduct and safe practice will be given to all staff and volunteers during induction. These are sensible steps that every adult should take in their daily professional conduct with children. This advice can be found in 'Guidance for Safer Working Practices for Adults who work with Children and Young People in Education Settings' (February 2022). All staff and volunteers are expected to carry out their work in accordance with this guidance and will be made aware that failure to do so could lead to disciplinary action.

12. MANAGING ALLEGATIONS AGAINST STAFF & VOLUNTEERS

Allegations that may meet the harms threshold

12.1 Our aim is to provide a safe and supportive environment which secures the wellbeing and very best outcomes for the children at our school. We do recognise that sometimes the behaviour of adults may lead to an allegation of abuse being made.

12.2 Allegations sometimes arise from a differing understanding of the same event, but when they occur, they are distressing and difficult for all concerned. We also recognise that many allegations are genuine and there are some adults who deliberately seek to harm or abuse children. We work to the thresholds for harm as set out in '*Working Together to Safeguard Children*' (2018) and '*Keeping Children Safe in Education*', DfE (2022) below. An allegation may relate to a person who works / volunteers with children who has:

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- behaved in a way that has harmed a child, or may have harmed a child and/or;
- possibly committed a criminal offence against or related to a child and/or;
- behaved towards a child or children in a way that indicates he or she may pose a risk of harm to children; and/or
- behaved or may have behaved in a way that indicates they may not be suitable to work with children.

The 4th bullet point above recognises circumstances where a member of staff or volunteer is involved in an incident outside of school which did not involve children but could have an impact on their suitability to work with children; this is known as transferrable risk.

12.3 At The Empower School we recognise our responsibility to report / refer allegations or behaviours of concern and / or harm to children by adults in positions of trust who are not employed by the school to the LADO service and notify the referring linked school. These are adults such as those in the voluntary sector, taxi drivers, escorts, and fosters carers.

12.4 We will take all possible steps to safeguard our children and to ensure that the adults in our school are safe to work with children. When concerns arise, we will always ensure that the procedures outlined in the local protocol *Allegations Against Persons who Work with Children* and Part 4 of *'Keeping Children Safe in Education'*, DfE (2022) are adhered to and will seek appropriate advice.

12.5 When using a supply agency, we inform the agency of our process for managing allegations against staff and keep them up to date with any policy developments. Where concerns are raised about an individual and the school is not their employer, we recognise that we still have responsibility to ensure allegations are dealt with properly. In order to achieve this, we will liaise with relevant parties including the LADO to determine a suitable outcome. Whilst the supply agency should be fully involved and co-operate with any enquiries

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from the LADO, police and/or children's services, we recognise that the School will usually take the lead in conducting an investigation as we have direct access to any affected children and other school staff to collect the facts.

12.6 Any member of staff or volunteer who does not feel confident to raise their concerns with the Director of The Empower School or the referring linked school should contact the LADO directly via email.

12.7 The school has a legal duty to refer to the Disclosure and Barring Service anyone who has harmed, or poses a risk of harm, to a child, or if there is reason to believe the member of staff has committed one of a number of listed offences, and who has been removed from working (paid or unpaid) in regulated activity or would have been removed had they not left. The DBS will consider whether to bar the person. If these circumstances arise in relation to a member of staff at our school, a referral will be made as soon as possible after the resignation or removal of the individual in accordance with advice from the LADO.

13 RELEVANT POLICIES

13.1 To underpin the values and ethos of our school and our intent to ensure that pupils at our school are appropriately safeguarded the following policies are also included under our safeguarding umbrella:

- Staff Code of Conduct
- Behaviour
- Recruitment which adheres to Part 3 of *Keeping Children Safe in Education*.
- Whistleblowing
- Attendance
- Health and Safety
- First aid

14. STATUTORY FRAMEWORK

The Empower School Safeguarding and Child Protection Policy

This policy has been devised in accordance with the following legislation and guidance:

- Working Together to Safeguard Children DfE (July 2018)
- Keeping Children Safe in Education DfE (2022)
- Working Together to Improve School Attendance, DfE (2022)
- Guidance for Safer Working Practices for Adults who work with Children and Young People in Education Settings (Feb 2022)
- What to do if you're worried a child is being abused DfE (March 2015)
- Information sharing: advice for practitioners providing safeguarding services DfE (July 2018)
- The Prevent duty: Departmental advice for schools and childcare providers DfE (June 2015)
- Mandatory Reporting of Female Genital Mutilation- procedural information Home Office (December 2015)
- Sexual violence and sexual harassment between children in schools and colleges DfE (July 2021)
- Child sexual exploitation: guide for practitioners DfE (February 2017)
- Mental Health and Behaviour in Schools DfE (November 2018)
- Data protection: toolkit for schools DfE (September 2018)
- Criminal exploitation of children and vulnerable adults: county lines

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Appendix 1: Draft Recording Form for Safeguarding Concerns

Staff, volunteers and regular visitors are required to complete this form and pass it to Ginnette Williams if they have a safeguarding concern about a child in our school.

Full name of child	Date of Birth	Referring School	Your name and position in school

Nature of concern/disclosure	
Please include where you were when the child made a disclosure, what you saw, who else was there, what did the child say or do and what you said.	
Time & date of incident:	
Who are you passing this information to?	
Name:	
Position:	

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[Ensure that if there is an injury this is recorded (size and shape) and a body map is completed]

[Make it clear if you have raised a concern about a similar issue previously]

Your signature:

Time form completed:

Date:

Time form received by DSL:

Action taken by DSL:

Referred to...

Attendance

Police

School DSL

Other

☐☐☐☐☐☐☐

Date:

Time:

Parents informed? Yes / No (If No, state reason)

Feedback given to...?

☐

School DSL/Pastoral team

☐

Child

☐

Person who recorded disclosure

Further Action Agreed:

Full name:

DSL Signature:

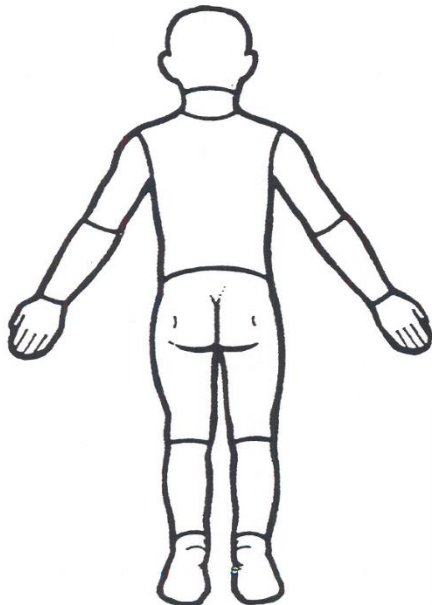
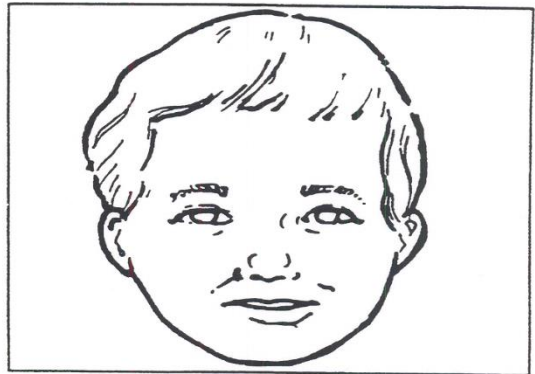
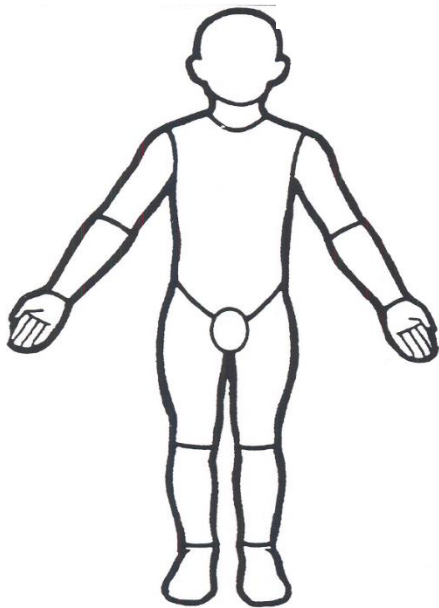
Date:

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Body Map

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Older Child



**Indicate clearly where the injury was seen and attach this to the
Recording Form**

Appendix 2: Safeguarding Induction Sheet for new or supply staff and regular visitors or volunteers.

We all have a statutory duty to safeguard and promote the welfare of children, and at our school we take this responsibility seriously.

If you have any concerns about a child or young person in our school, you must share this information immediately with our Designated Safeguarding Lead (DSL) or one of the alternate post holders.

Do not think that your worry is insignificant if it is about hygiene, appearance or behaviour – we would rather you told us as we would rather know about something that appears small than miss a worrying situation.

If you think the matter is very serious and may be related to child protection, for example, physical, emotional, sexual abuse or neglect, you must find one of the designated professionals detailed below and provide them with a written record of your concern. A copy of the form to complete is attached to this and others can be obtained from a member of staff at The Empower School. Please ensure you complete all sections as described.

If you are unable to locate them ask a member staff to find them and to ask them to speak with you immediately about a confidential and urgent matter.

Any allegation or low-level concern about a member of staff should be reported immediately to the DSL and or Director of The Empower School.

The people you should talk to in The Empower School are:

Designated Safeguarding Lead (DSL): Ginnette Williams

Contact Number: 07766548756

Email: gw@contactsuccess.co.uk

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Deputy Designated Lead:

Contact Number:

Email:

At The Empower School we strive to safeguard and promote the welfare of all children.

Appendix 1: Allegations of abuse made against staff,

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(To be read in conjunction with The Empower School Ltd

Safeguarding and Child Protection Policy)

This appendix is based on the Department for Education's statutory guidance, Keeping Children Safe in Education.

Appendix 1: allegations of abuse made against staff

This section of this policy applies to all cases in which it is alleged that a current member of staff, including a supply teacher or volunteer, has:

- Behaved in a way that has harmed a child, or may have harmed a child, or
- Possibly committed a criminal offence against or related to a child, or
- Behaved towards a child or children in a way that indicates he or she may pose a risk of harm to children, or
- Behaved or may have behaved in a way that indicates they may not be suitable to work with children It applies regardless of whether the alleged abuse took place in the school.

Allegations against a teacher who is no longer teaching and historical allegations of abuse will be referred to the police.

We will deal with any allegation of abuse against a member of staff or volunteer very quickly, in a fair and consistent way that provides effective child protection while also supporting the individual who is the subject of the allegation.

Our procedures for dealing with allegations will be applied with common sense and judgement.

Suspension of the accused until the case is resolved

Suspension will not be the default position, and will only be considered in cases where there is reason to suspect that a child or other children is/are at risk of harm, or the case is so serious that it might be grounds for dismissal. In such cases, we will only suspend an individual if we have considered all other options available and there is no reasonable alternative.

Based on an assessment of risk, we will consider alternatives such as:

- Redeployment within the provision so that the individual does not have direct contact with the child or children concerned

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- Providing an assistant to be present when the individual has contact with children
- Redeploying the individual to alternative work in the provision so that they do not have unsupervised access to children
- Moving the child or children to sessions and activities where they will not come into contact with the individual, making it clear that this is not a punishment and parents have been consulted
- Temporarily redeploying the individual to another role on a different site.

Definitions for outcomes of allegation investigations

Substantiated: there is sufficient evidence to prove the allegation

Malicious: there is sufficient evidence to disprove the allegation and there has been a deliberate act to deceive

False: there is sufficient evidence to disprove the allegation

Unsubstantiated: there is insufficient evidence to either prove or disprove the allegation (this does not imply guilt or innocence)

Unfounded: to reflect cases where there is no evidence or proper basis which supports the allegation being made

Procedure for dealing with allegations

In the event of an allegation that meets the criteria above, the Directors (or Chair of Board) where the Directors are the subject of the allegation) – the ‘case manager’ – will take the following steps: Immediately discuss the allegation with the Devon LADO,

The employer must inform the local authority designated officer (LADO) **within 1 working day when an allegation is made** and prior to any further investigation taking place.

The LADO will advise the employer whether or not informing the parents of the child/ren involved will impede the disciplinary or investigative processes. Acting on this advice, if it is agreed that the information can be fully or partially shared, the employer should inform the parent/s. In some circumstances, however, the parent/s may need to be told straight away (e.g. if a child is injured and requires medical treatment). The parent/s and the child, if sufficiently mature, should be helped to understand the processes involved and be kept informed about the progress of the case and of the outcome

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where there is no criminal prosecution. This will include the outcome of any disciplinary process, but not the deliberations of, or the information used in, a hearing.

The employer should seek advice from the LADO, the police and/or Children's Social Care about how much information should be disclosed to the accused person.

Subject to restrictions on the information that can be shared, the employer should, as soon as possible, inform the accused person about the nature of the allegation, how enquiries will be conducted and the possible outcome (e.g. disciplinary action, and dismissal or referral to the DBS or regulatory body).

The accused member of staff should:

- Be treated fairly and honestly and helped to understand the concerns expressed and processes involved;
- Be kept informed of the progress and outcome of any investigation and the implications for any disciplinary or related process;
- If suspended, be kept up to date about events in the workplace.

Suspension is a neutral act and it should not be automatic. It should be considered in any case where:

- There is cause to suspect a child is at risk of harm; or
- The allegation warrants investigation by the police; or
- The allegation is so serious that it might be grounds for dismissal.

The possible risk of harm to children should be evaluated and managed in respect of the child/ren involved and any other children in the accused member of staff's home, work or community life. If a strategy meeting / discussion is to be held or if Children's Social Care or the police are to make enquiries, the LADO should canvass their views on suspension and inform the employer. Only the employer, however, has the power to suspend an accused employee and they cannot be required to do so by a local authority or police. If a suspended person is to return to work, the employer should consider what help and support might be appropriate (e.g. a phased return to work and/or provision of a mentor), and also how best to manage the member of staff's contact with the child concerned, if still in the workplace.

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If it is decided that further action is needed, take steps as agreed with the LADO to initiate the appropriate action in school and/or liaise with the police and/or children's social care services as appropriate.

Provide effective support for the individual facing the allegation or concern, including appointing a named representative to keep them informed of the progress of the case and considering what other support is appropriate. Staff are encouraged to seek support from other sources, colleagues, union representatives etc.

Inform the parents or carers of the child/children/main school setting involved about the allegation as soon as possible if they do not already know (following agreement with children's social care services and/or the police, if applicable). The DSL or DDSL will also inform the parents or carers of the requirement to maintain confidentiality about any allegations made against teachers (where this applies) while investigations are ongoing. Any parent or carer who wishes to have the confidentiality restrictions removed in respect of a teacher will be advised to seek legal advice.

Keep the parents or carers of the child/children and main school setting involved informed of the progress of the case and the outcome, where there is not a criminal prosecution, including the outcome of any disciplinary process (in confidence).

Make a referral to the Disclosure and Barring Service where it is thought that the individual facing the allegation or concern has engaged in conduct that harmed or is likely to harm a child, or if the individual otherwise poses a risk of harm to a child. Where the police are involved, wherever possible the governing board will ask the police at the start of the investigation to obtain consent from the individuals involved to share their statements and evidence for use in the provision's disciplinary process, should this be required at a later point.

Timescales

Any cases where it is clear immediately that the allegation is unsubstantiated or malicious will be resolved within 1 week.

If the nature of an allegation does not require formal disciplinary action, we will institute appropriate action within 3 working days.

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If a disciplinary hearing is required and can be held without further investigation, we will hold this within 15 working days.

Specific actions

Action following a criminal investigation or prosecution. The case manager will discuss with the LADO whether any further action, including disciplinary action, is appropriate and, if so, how to proceed, taking into account information provided by the police and/or children's social care services.

Conclusion of a case where the allegation is substantiated

If the allegation is substantiated and the individual is dismissed or the school ceases to use their services, or the individual resigns or otherwise ceases to provide their services, the case manager and the Directors will discuss with the designated officer whether to make a referral to the DBS for consideration of whether inclusion on the barred lists is required. If they think that the individual has engaged in conduct that has harmed (or is likely to harm) a child, or if they think the person otherwise poses a risk of harm to a child, they must make a referral to the DBS.

If the individual concerned is a member of teaching staff, the case manager and personnel adviser will discuss with the designated officer whether to refer the matter to the Teaching Regulation Agency to consider prohibiting the individual from teaching.

Individuals returning to work after suspension

If it is decided on the conclusion of a case that an individual who has been suspended can return to work, the case manager will consider how best to facilitate this. The case manager will also consider how best to manage the individual's contact with the child or children who made the allegation, if they are still attending The Empower School Ltd.

Unsubstantiated or malicious allegations

If an allegation is shown to be deliberately invented, or malicious, the Directors, or other appropriate person in the case of an allegation against the Director, will consider whether any disciplinary action is appropriate against the pupil(s) who made it, or whether the police should be asked to consider whether action against those who made the allegation might be appropriate, even if they are not a student.

Confidentiality

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The Empower School Ltd will make every effort to maintain confidentiality and guard against unwanted publicity while an allegation is being investigated or considered. The DSL or DDSL will take advice from the LADO, police and children's social care services, as appropriate, to agree:

- Who needs to know about the allegation and what information can be shared
- How to manage speculation, leaks and gossip, including how to make parents or carers of a child/children involved aware of their obligations with respect to confidentiality
- What, if any, information can be reasonably given to the wider community to reduce speculation How to manage press interest if, and when, it arises

Record-keeping

The DSL will maintain clear records about any case where the allegation or concern meets the criteria above and store them on the individual's confidential personnel file for the duration of the case.

Such records will include:

- A clear and comprehensive summary of the allegation
- Details of how the allegation was followed up and resolved
- Notes of any action taken and decisions reached (and justification for these, as stated above) If an allegation or concern is not found to have been malicious, the school will retain the records of the case on the individual's confidential personnel file, and provide a copy to the individual.

Where records contain information about allegations of sexual abuse, we will preserve these for the Independent Inquiry into Child Sexual Abuse (IICSA), for the term of the inquiry. We will retain all other records at least until the individual has reached normal pension age, or for 10 years from the date of the allegation if that is longer.

The records of any allegation that is found to be malicious will be deleted from the falsely accused individual's personnel file.

References

When providing employer references, we will not refer to any allegation that has been proven to be false, unsubstantiated or malicious, or any history of allegations where all such allegations have been proven to be false, unsubstantiated or malicious.

Learning lessons

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After any cases where the allegations are substantiated, we will review the circumstances of the case with the LADO to determine whether there are any improvements that we can make to the school's procedures or practice to help prevent similar events in the future. This will include consideration of (as applicable):

- Issues arising from the decision to suspend the member of staff
- The duration of the suspension
- Whether or not the suspension was justified
- The use of suspension when the individual is subsequently reinstated. We will consider how future investigations of a similar nature could be carried out without suspending the individual